

The Orissa Local Authorities Census Expenses Contribution Act, 1949

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[The Orissa Local Authorities Census Expenses Contribution Act, 1949](#)

[Orissa Act](#)

[No. 4 of 1949](#)

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[An Act to provide for contribution by Local authorities of a portion of the expenses to be incurred in connection with the taking of census, and for certain other purposes.](#)

[Preamble. - Whereas it is expedient to provide for contribution by Local authorities of a portion of the expenses to be incurred in connection with the taking of census and for certain other purposes it is hereby enacted as follows :](#)

[1.](#)

Short title, extent and commencement.

(1)
This Act may be called the Orissa Local Authorities Census Expenses Contribution Act, 1949.

(2)
It extends to the whole of the Province of Orissa.

(3)
It shall come into force at once.

2.
Definitions.

- In this Act, unless there is anything repugnant in the subject or context-

(a)
"census" means census taken in accordance with the provisions of the Census Act, 1948 (XXXVII of 1948);

(b)
"prescribed" means prescribed by rules made under this Act.

3.
Power in regard to expenses.

- Notwithstanding anything contained in any enactment in regard to the funds of any Local authority, the Provincial Government may direct that such portion of any expenses, as may be prescribed, incurred for anything done in accordance with the Census Act, 1948 (XXXVII of 1948) or the rules made thereunder may be charged to the funds of any Local authority constituted for and on behalf of the area within which such expenses were incurred.

4.
Obligation of Local authority to give assistance.

- Every Local authority shall be bound to give such assistance in connection with a census as it may be called upon to give by an order made under Section 6 of the Census Act, 1948 (XXXVII of 1948).

5.
Power to enforce orders.

- If the Provincial Government after receiving a report from the District Magistrate or the Superintendent of Census is satisfied that a Local authority has made default in performing any duty imposed on it by or under this Act or the Census Act, 1948 (XXXVII of 1948) or has failed to make payment of expenses or cost as required by or under Section 3 of this Act or Section 16 of the Census Act, 1948 (XXXVII of 1948) the Provincial Government may make such orders and take such steps as it may consider expedient for securing performance of such duties or the payment of such expenses or costs, as the case may be.

6.
Power of Provincial Government to make rules.

(1)
That Provincial Government may make rules to carry out the purposes of this Act.

(2)
In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:

(a)
the portion of the expenses incurred in connection with the taking of census which may be charged under this Act to the Funds of any Local authority;

(b)
the manner in which such charged under this Act shall be computed and paid;

(c)
the manner in which and the extent to which any duty connected with census may be performed by a Local authority.

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